



STATE OF COLORADO

DIVISION OF MINERALS AND GEOLOGY Department of Natural Resources

1313 Sherman St., Room 215
Denver, Colorado 80203
Phone: (303) 866-3567
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Bill Owens
Governor

Greg E. Walcher
Executive Director

Michael B. Long
Division Director

August 3, 2001

Mr. John Lohr
CEMEX, Inc.
P.O. Box 529
Lyons, CO 80540

Re: Larimer County Quarry, Permit No. M-1977-341, Succession of Operators Application

Dear Mr. Lohr:

On July 19, 2001, the Division of Minerals and Geology received a Succession of Operators package for the transfer of the Larimer County Quarry from Southdown, Inc. to CEMEX, Inc. The Division is returning the Succession of Operators Application form and the Performance Warranty for the following reason:

Succession of Operator Application: Notarization of Signatures should read:

The foregoing instrument was acknowledged before me this 8th day of March, 2001, by Daniel W. Heintz as Vice President of Southdown, Inc.

Or

The foregoing instrument was acknowledged before me this 8th day of March, 2001, by Daniel W. Heintz as Vice President of CEMEX, Inc.

Performance Warranty: The Performance Warranty is improperly signed and notarized. The Operator (Page 3) of the Larimer County Quarry is not Mr. Heintz but CEMEX, Inc. Mr. Heintz should sign on the **By:** line. The notarization of his signature should read as the second example above.

If you have any questions, please do not hesitate to call me at (303) 866-4074.

Sincerely,

Barbara D. Chiappone
Minerals Division Program Assistant II

Enclosures

CERTIFIED MAIL NO. 7000 0520 0012 1689 9585
Return Receipt Requested